

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR
MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC
Plaintiff

v.

Case Number 25 CC 3916

WANDA D. CONNELL, et als.,
Defendants

ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE FIRST AND SECOND
AFFIRMATIVE DEFENSES

This matter came before the Court for hearing on the Plaintiff's Motion to Strike First and Second Affirmative Defenses, filed January 26, 2026. Present at the hearing was counsel for both parties. Having heard the parties' presentations, the Court finds and rules as follows.

The motion is **GRANTED**. *See Custer Medical Center v. United Auto. Ins. Co.*, 63 So. 3d 1086, 1096 (Fla. 2010) (affirmative defense is an assertion of facts or law by defendant that, if true, would avoid the action).

DONE AND ORDERED in Chambers, Bradenton, Manatee County, Florida on this 20th day of March 2026.



eSigned by RENEE INMAN, County Judge 03/20/2026 15:29:54 8Txx18Ub

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